Saturday, February 15, 2025

Committee Reports

CMA Board Meeting

Coolfont Mountainside Association

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting

February 15, 2025, 10:00am

AGENDA

I. Roll Call – Proof of Quorum

II. Approval of Minutes

a. December 16, 2024
b. January 18, 2025

III. Reports of Officers and Directors

a. President's Report
b. Vice President's Report
c. Treasurer's Report
d. Directors' Reports

IV. Operations Manager Report, Cathy Levey

a. Water
    i. Activities & Updates
b. Sewer
    i. Lagoon Liner Project
    ii. Other Activities & Updates
c. Project List
    i. Septic Survey – (*See section V.d)*

V. W&S Funding, Cindy Kelleher

a. Weinberger and R Reservoirs Refurbishing - Estimates, funding, and timing
    i. NRWA Loan and financing $42,425 - Status
b. WSPSD Contract Renegotiation - Status
c. WS D-1 Operator position - Status
d. Septic Maintenance Policy Revisions (based on gallons) – Status

VI. Owner Forum

VII. Executive Session (held prior to open session)

a. Delinquency Report

VIII. Adjournment

Next Meeting – March 15, 2025

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting
December 16, 2024, 7:00pm
MEETING MINUTES

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	P
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Iris Melton	P
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cindy Kelleher, Rosemary Bigelow, Stephanie Rebant, Mark Johnson, Joe Auslander, Barbara Meeker

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 7:03pm. Valerie Creason acknowledged proof of quorum of board members.

Motion by Valerie Creason to appoint Iris Melton to the CMA Board to complete Anna Connolly's remaining days on the Board, given the days do not count as a "term" as the Bylaws state only "No member of the Board who is completing a third consecutive term may be nominated" and does not define what constitutes a "term" - provided Iris Melton accepts the appointment. Dawne Holz seconded. Iris Melton accepted the appointment.
Discussion: None
Vote: Yea=6, Nay=0, Absent=1

Approval of Minutes (November 18, 2024)

Steve Katz motioned to approve the meeting minutes for November 18, 2024. Dawne Holz seconded.
Discussion: Iris Melton noted correction of $200 to $200K
Vote: Yea=6, Nay=0, Absent=1

Reports of Officers and Directors

a. President's Report - none
b. Vice President's Report - none
c. Treasurer's Report
   i. Noted the recent passing of Arnold Weinberg and his service to our community.
   ii. Financial Update
      - 92% as of the end of Nov. Currently at 95.8%
      - All invoices for September billing were paid by Nov 24th
      - Invoices sent out slightly later than usual, due to timing of both meter readings and the new tariff
      - 2 Leak Adjustments requested. *See Cathy Levey's update.*
      - Set up the autopayment of the NRWA Loan
   iii. WVPSC Tariff Review
      - New rates by the PSC are final. The date for new rates is Dec 22nd. New rates – will post on website
      - In February the Finance Committee and Water & Sewer Committee will discuss the March billing. Could bill at interim rates between Dec 11th and Dec 22nd. The rest of the 90 days will be at the higher rate. Or we can check with PSC to simply bill full period at new rates. More to come on this.
      - Q: Steve Katz asked what the parameters are for expenditures over budget.
      - A: Dawne Holz noted there are no restrictions for Water and Sewer, per the Bylaws.
d. Directors' Reports - none

Operations Manager Report, Cathy Levey

Refer to full Water and Sewer Reports on the CMA website

a. Water
   i. Activities & Updates – *refer to Cathy Levey's report*
b. Sewer
   ii. Lagoon Liner Project – *refer to Cathy Levey's report*
c. Project List
   iii. Septic Survey – No update

W&S Funding, Cindy Kelleher

Refer to full Water and Sewer Funding Report on the CMA website

a. Weinberger and R Reservoirs Refurbishing - Estimates, funding, and timing
   - Estimates received from 2 of 3 companies. Also checked their references.
   - WS Committee recommending Poly Coating Solutions of the $149,075.
   - The plan is to apply for additional loan funding of $106K from NRWA loan. With this project, and the lagoon liner project, we will hit the NRWA allowable max of $200K.
   - The other $42K would come from somewhere else. Such as reserves, special assessments, etc...
   - Note the road repairs will need to be completed before the work can begin.
   - Prospects for acquiring the loan are very high.
   - We will know the interest rate until the loan is approved, just like the last loan.
   - Dawne Holz noted this would require an emergency rate increase to the PSC in order to make the monthly payments on the NRWA Loan. Cindy Kelleher and Valerie Creason offered to take on this task.
   - The Board will need to involve the CMA Attorney if planning to use reserve funds.

Motion by Dave Creason to approve the contract with Poly Coating solutions in amount $149,075 to refurbish the R Reservoir and Weinberger and make repairs contingent upon funding. Iris Melton seconded.
Discussion: None
Vote: Yea=6, Nay=0, Absent=1

b. WSPSD Contract Renegotiation
   - We have continued contract negotiations with the WSPSD.
   - WSPSD noted their new rate will be $70/hr., and it is not negotiable. We are going to verify with the PSC.
   - Currently it looks like we will save about $10,000.
   - They will continue to operate under the existing contract and rates until the new contract is finalized and signed by all necessary parties, per the language in the existing contract.
   - We have a follow up meeting scheduled with them on Jan 13th on contract language.
c. Posting part-time WS Operator position
   - Posting an advertisement for a part-time Operator.
   - At this stage, we are currently polling the community to see who might be interested.
d. Septic Maintenance Policy Revisions (based on gallons) – Pending

Owner Forum - none

Executive Session (held prior to open session)

a. Delinquency Report

Adjournment

At 7:42pm --- Dawne Holz motioned to adjourn; Steve Katz second. Vote: Yea=6, Nay=0, Absent=1

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting
January 18, 2025, 10:00am
MEETING MINUTES

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	A
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Iris Melton	P
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cindy Kelleher, Gary Farmer, Rosemary Bigelow, Joe Auslander, Barbara Meeker, Tom Holz, Cathy Levey

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 12:40pm. Valerie Creason acknowledged proof of quorum of board members.

Approval of Minutes - Defer

December 16, 2024 – Will be reviewed and approved in next Board meeting.

Reports of Officers and Directors

a. President's Report - none
b. Vice President's Report – n/a
c. Treasurer's Report
   i. Financial Update
      - ***Refer to full Treasurer's Report on the CMA website***
      - Officers of the WS Board are the same officers elected to the board this morning.
      - End of Year Report – Expenses at 105% with 123% of the projected income. Report showing a loss of $6,500 which will change a bit because WS will reimburse CMA for resources/employees. Final report will probably be in February
      - 7 owners have not paid WS invoices and were assessed late fees at 10%. Reminders were sent at the end of December and statements were mailed this past Monday (01/13/2025) to 6 of them. Some properties are in process of being sold. Balance will be paid at closing. 4 of these are typically late.
      - Financial Budget Sheet (new) – Note the principal of the NRWA loan is a liability to W&S. Therefore, the principal is posted as a liability on the balance sheet. The loan interest paid each month is an operating expense on the monthly expenses report.

Motion: Dawne Holz moved to update the W&S Budget based on the new tariff rates. Steve Katz seconded.
Discussion: None.
Vote: Yea=5, Nay=0, Absent=2

   ii. WVPSC Tariff Review
      - Received final recorded Tariffs at the end of the year. Tariff is now Complete. Meters were read on December 10, 2024; therefore, we may need to prorate for those first 10 days.
d. Directors' Reports

Operations Manager Report, Cathy Levey

Refer to full Water and Sewer Report on the CMA website

a. Water
   - Water leak repairs will be done when found.
   - Dennis Schafer is amazing, and Cathy asked if we could make the relationship more official for projects related to access roads, water line replacements, etc... In return, Dennis will give us priority.
   - Dennis came out over the holiday to make a repair and charged at his normal rates, not holiday rates.

b. Sewer
   - Lagoon Liner Project
     - John Desanto will be out this coming week. The liner work John has done is very impressive.
     - We are looking at 2 more visits before applying the liner.
     - Freezing temps are causing delays.

Next priorities:
- Lagoon Liner
- Access Roads need to be done prior to cleaning and refurbishing reservoirs
- WSPSC contract under review
- New Employee (part-time assistant to Cathy)

c. Project List
   i. Septic Survey – (*See section V.d)*

W&S Funding, Cindy Kelleher

Refer to full Water and Sewer Funding Report on the CMA website

a. Weinberger and R Reservoirs Refurbishing - Estimates, funding, and timing
   i. NRWA Loan and financing $42,000
      - NRWA has received our request and is reviewing our application
      -
   ii. Access Roads to be completed first (est. Early Spring)

b. WSPSC Contract Renegotiation

c. Posting of part-time WS Operator position

d. Septic Maintenance Policy Revisions (based on gallons) – Status

Owner Forum

None

Executive Session (held prior to open session)

a. Delinquency Report

Adjournment

At 1:22pm --- Iris Melton motioned to adjourn; Steve Katz second. Vote: Yea=5, Nay=0, Absent=2

Coolfont Mountainside Association – Water & Sewer
Board of Directors Meeting – February 15, 2025
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 12/31/24 are attached and cover 100% of the budget year. Expenses are slightly over budget at 106.5%, however, income was 123.7% of budgeted amount. The attached report shows a loss of $8,647.05 due primarily to suspension of funding from CMA in July 2024. This may increase a little with the payroll transfer to CMA. To be covered by equity.

For 2025, reports as of 1/31/25 are attached and cover 8.3% of the budget year. Expenses are under budget at 4.8%.

Accounts

2024 Q4 Billing

- One account is still unpaid. If not paid by March 20, will send Service Termination Notice.

2025 Q1 Billing

- See information concerning prorating invoices, below.

NWRA Loan

- Automatic debit payments are working as expected.
- Requested updated amortization schedule to be sure QB is accounting correctly.
- Loan payments are split between the loan liability and interest expense. The interest expense shows on the annual operating budget on line 775. The principal remaining on the loan is shown as a liability on the Balance Sheet report. Principal payments are not included as an expense on the monthly operating budget reports.

Monthly Updates

Updates include details of attached reports as of the end of the previous month.

December/January:

- Updated budget based on new tariffs circulated to WS Committee and Board on 1/5/25 for discussion and approval.
- Will set up new 2025 budget in QuickBooks when approved. Still working to close out 2024.
- The mileage rate increased from 67 cents/mile to 70 cents/mile (IRS business mileage rate).

January

- All budget lines running about on track.

2025 Q1 Billing

- Customer meters were read on 12/10/24. We may have to prorate the March invoicing to compensate for the 11 days of service at the Interim Rates.

- Preliminary review shows customers using less than the minimum bill of 3,000 gallons will pay less with the new rates, no prorating required. Customers over the 3,000 gallons minimum will realize a very small savings by prorating the usage between the Interim and Final tariff rates.
- The Treasurer will work with the bookkeeper to determine the best way to reflect this on invoices for the 12/11/24 to 2/28/25 billing period. Invoices to go out in early March.

Water Committee Report for February 15, 2025 Board Meeting

On February 5, 2025, a W&S Sub Committee Meeting was held to discuss Cindy Kelleher's progress regarding contract negotiations with WSPSD, hiring a 1-D water operator, and efforts towards obtaining a loan for cleaning and refurbishing the reservoirs. (Please see Cindy's report for further details.) Cindy and Cathy Levey will be meeting with one of the applicants for the 1-D water operator part-time position this coming Tuesday the 11th. We will also be attending the WSPSD board meeting on Wednesday the 12, at which time the proposed revised contract with CMA is anticipated for discussion.

Water Operator's Report:

Two leaks, one on each system, remain currently unresolved. Daily efforts, under difficult weather-related circumstances, have allowed us to isolate the leaks to a smaller portion of water line for each leak. The ice, snow, and freezing temps have allowed for daily challenges, for example, at times making it nearly impossible to raise meter lids frozen in place. The leak in the L Section (on the South Water System) has been isolated to between the L-2 and L-1 valve. Jeff Rhodes, of WSPSD, theorizes the leak may be the result of the heavy trash truck driving over soft ground to break the line underground. If this is the case, once the repair is done, we will work with the homeowner to move the trash bin closer to the road. The leak in the P Section (on the North Water System) has been located in the woods on the water line that serves the homes on lots P-7, P-8. And P-9. A call will be made to Craig Miller of the PSC this coming week for his assistance in further pinpointing the leaks. Pump-on hours on the North System have ranged anywhere from 3 hours to 12 hours in a 24-hour period, depending on a number of variables, such as filling of hot tubs, filling of pressure tanks and high occupancy, in addition to the leak in the P Section. One notable example was working with John Hobday on 2/3/25 (in soliciting his expertise in locating the leak in the P Section), when John discovered a hose left running and unattended in a hot tub overnight, with water spilling out of the hot tub and across the deck to the ground below.

Wastewater Committee Report for February 15, 2025 Board Meeting

John Disanto, the contractor for the lagoon liner replacement project, has been onsite during the following time frames: January 21 through the 23rd and January 28 through February 2, working towards the goal of removing the remaining grey water in the lagoon as well as some of the sludge. Ice remaining on the lagoon surface have created challenges despite the use of a skid steer to break up the ice and a larger pump and 3" hoses. So far, John has worked with the DEP inspector, Mike Kanehl, to further revise the work plan to allow for sludge removal to dumpsters to be brought on site. The dumpsters will be used in addition to the 15,000-gallon basin (into which John has already pumped 3000 gallons of wet sludge.) WSPSD has raised concerns about the sludge in the wetlands that has been deposited as the effluent is being pumped into the wetlands. (John has been pumping into both the basin and the wetlands.) I raised their concern with John and Corrine, of Industrial Marine Services, regarding the sludge in the wetlands, partially covering our distribution pipes, and I was assured they are aware of the situation, and all will be resolved with time.

WSPSD has also raised concerns about getting their pump truck to the lagoon to pump the sludge and John Disanto has configured his basin to allow pumping from higher ground instead of having to pump directly from the lagoon itself. Glen Smith, of Glen Smith Septic, has also expressed interest in assisting with the sludge removal, particularly as the weather is anticipated to warm and conditions are more favorable.

We have been assured, as of 2/9/25, we will shortly be receiving a revised work plan as well as a statement from Western Liner that installing the new liner over the old liner will not void the warranty. John is working on dates for the revised plan and once that is complete, we will receive the documents as promised.

CMA – WATER AND SEWER FEBRUARY 9, 2025

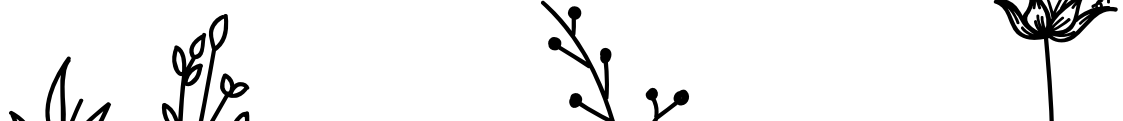
TO: VALERIE CREASON

FROM: CINDY KELLEHER

SUBJECT: WATER AND SEWER PROJECT AND FUNDING

CC: ROSEMARY BIGLOW & CATHY LEVEY

- **Lagoon Liner** Cathy will Update
- **Water Tank Rehab**
    - Reviewing the initial scope of work and will circulate to other members of the Water & Sewer Committee for review and comment.
        - We will then need to develop and review the contract.
    - NRWA no additional request. Current federal funding may create delays.
        - We will be responsible for $42,425.
    - Discussion has occurred about financing our portion. Requires decision.
    - Project Contingent on Access Road Repair
    - Start Early Spring
- **Warm Springs PSD Contract**
    - Contract tentatively to be presented to WSPSD Board for review and approval 2/12
        - Cindy and Cathy to attend meeting
        - Next Step
            - Legal review by both parties
            - CMA President to sign
            - Submit to WVPSC
            - Order issued by WVPSC w/ approval
            - WSPSD signed
            - New contract begins.



- **Staffing**
    - Current Efforts included Morgan Messengers, Signs, Participation in Workforce WV, calls to other Water Operators. Future efforts Indeed and BSHS career fair.
    - Potential candidate former Water Operator phone interview conducted, face to face interview 2/11.
- **Septic Policy** reviewed by committee. Cindy needs to connect with Tom one additional time.
- **Future W &S**
    - Draft Project Plan and Share with W & S group
    - Continue to engage with Matt Pennington, filed a technical support request with the University of Maryland under the auspices of the State of West Virginia.

Coolfont Mountainside Association
Board of Directors Meeting
February 15, 2025, 10:00am
AGENDA

I. Roll Call – Proof of Quorum

II. Approval of Minutes
   a. December 16, 2024
   b. January 18, 2025

III. Reports of Officers and Directors
   a. President's Report
   b. Vice President's Report
   c. Treasurer's Report
   d. Directors' Reports

IV. Site Manager Report, Stephanie Rebant, MHRE

V. Committee Reports & Chairs

a.	Communications	Dawne Holz	Previously distributed
b.	DACC	Gary Farmer	Previously distributed
c.	Firewise	Mark Johnson	No Update
d.	Neighborhood Watch	Gary Farmer	Previously distributed
e.	Recreation	Chris Peabody	Acknowledged No Update
f.	Social	Vacant	Volunteer Needed
g.	Welcome	Rosemary Bigelow	Acknowledged No Update

VI. Task Force Reports & Chairs

a.	Barn	Vacant	Volunteer Needed
b.	Sports Courts	Chris Peabody	Waiting on Funding

VII. New Business
   a. FirstEnergy unused wire in H Section – Update
   b. CMA General Enforcement Policy Resolution and Schedule of FFC
   c. New Owner Information Form – Update and Latest Suggested Changes
   d. Homewise Documents
   e. Documents on Website – update
   f. Meeting Minutes – BOD Review of Contractors and Discussion
   g. Damaged Sign

VIII. Old Business
   a. CMA Policy Resolutions
      i. Noise Policy – Draft created – Pending Board review and edits
      ii. Short Term Rental Policy – legal review
      iii. Schedule of Fines, Fees, and Charges – legal review
      iv. Enforcement – legal review
   b. Project List

IX. Owners Forum

X. Executive Session (held prior to open session)
   a. Delinquency Report
   b. Violations/Legal

XI. Adjournment

Next Meeting – March 15, 2025

Board of Directors Meeting

December 16, 2024, 7:00pm

MEETING MINUTES

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	P
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Iris Melton	P
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cindy Kelleher, Rosemary Bigelow, Stephanie Rebant, Mark Johnson, Joe Auslander, Barbara Meeker

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 7:42pm. Valerie Creason acknowledged proof of quorum of board members.

Approval of Minutes

Dawne Holz motioned to approve the meeting minutes for November 18, 2024. Jack Wennersten seconded.
Discussion: none
Vote: Yea=6, Nay=0, Absent=1

Reports of Officers and Directors

a. President's Report - None
b. Vice President's Report - None
c. Treasurer's Report
   - ***Refer to full Treasurer's Report on the CMA website***
   - Budget expenditures at 96%, running on track
   - No delinquent accounts
   - We overran snow removal, forest maintenance, and grounds maintenance. Overall, we are on track and do not look like we will be over budget, nor do we have one line item reaching or exceeding 10%. If this were to happen, the Board would need to address in the January end of the year meeting next year.
   - Assessments are due Jan 1st and are given 30 days to make payment. Please remember to submit payment.
d. Directors' Reports - None

Site Manager Report, Stephanie Rebant, MHRE

- ***Refer to full Site Manager Report on the CMA website***
- 3-way stop sign estimate submitted to Board
- Roads, ditches, and culverts were highlighted
  - Will work on ditches and culverts first, then gravel and pavement.
- Dawne Holz noted road funds could be allocated to ditches and culverts with board approval. Once we get the reserve study we can determine.
- Tennis courts – while waiting for path forward we need to be aware of the ongoing damage the tree growth and roots are causing to the crushed stone and surfaces. Something to think about when planning to repair the courts.
- Dawne Holz noted we have funding in reserves for sports courts, close to $50K. Something to think about.
- Valerie Creason noted she would be concerned if we were to spend reserve funds now on the courts while we need our reservoirs cleaned and repaired (our main water sources).

- Snow expectations – for those familiar with driving in inclement weather it was no big deal. For others that don't know how to drive in it, we need to plow more. Our threshold in the contract says 3 inches for plow.
- Valerie Creason noted Stephanie Rebant makes the best call based on the forecast presented. If the weather changes beyond weather predictions, we recognized this is not Stephanie's fault.
- Dawne Holz suggested maybe we add something to the website for our Guests to help them plan.
- Steph will send an email to the Board requesting to go outside the boundaries of the contract or weather predictions.
- Stephanie Rebant noted all but one placard is not in compliance. If she needs help, Steph will let the Board know.

Committee Reports & Chairs

a. Communications — Dawne Holz — Previously distributed
- Valerie Creason noted the website appears to be wide open, including the Secure Documents where our PII is. Valerie was alerted to this shortly before the meeting by a user who accessed secure documents from their cell phone. If this happens, can't Dawne Holz shut down our site until it is corrected? This can't also fall on Dawne Holz's shoulders. We need more volunteers!
- Iris Melton confirmed she could get to the secure documents without entering a password. She uses Safari. It appears to be open to all Safari users. Dawne will reach out and have it corrected.
- Dawne Holz suggested that we may want to look into an "owner login."

b. DACC — Gary Farmer — Previously distributed
- Two applications have come in and he will be looking into those.
- It seems we are getting a lot of signs people are putting on trees. Plan to engage the Board on this and how to communicate this to the community.

c. Firewise — Mark Johnson — No Update Provided
- Forest fire notifications were very helpful. Thank you, Stephanie Rebant!
- Sent reminders to community on fireplaces and open firepits.
- Cindy Kelleher noted firefighters were there for 3 days and asked how we could recognize them. Maybe Stephanie might have some ideas for us.
- Stephanie provided a list of all responders in her email along with photos.

d. Neighborhood Watch — Gary Farmer — Acknowledged No Update
- Thank you, Stephanie, for providing a quick response on requests for trees at risk of coming down.

e. Recreation — Chris Peabody — Previously distributed
- Pool - Discussion
  - We need to email the community asking for volunteers to join the Pool Team under the Recreation.
  - We have someone interested in CPO.
  - We have attendants who are interested in coming back next year. We will reach out to them too.
  - We need to complete and release a Pool Usage Schedule.
  - There are some repairs and maintenance that need to be done before opening this year.
  - Iris Melton noted the Pool is under the Recreation Committee which includes the pool, we could ask for volunteers for that committee.
  - Dawne Holz noted if we don't get volunteers then CMA Members will pay a whole lot more.

f. Social — Jack Wennersten — No Update Provided

g. Welcome — Rosemary Bigelow — Previously distributed

Task Force Reports & Chairs

a. Barn — Dave Creason — Acknowledged No Update
- We need a Barn Chair for next year. Dave Creason will not have the bandwidth to be the Chair this coming year.

b. Sports Courts — Chris Peabody — Waiting on Funding

c. Bus. Use of Property — Tom Holz — Waiting on Board

New Business

a. Recommendation for $50k CD

Motion by Dawne Holz to purchase a new $100K CD at CnB Bank 7-month term at 4.4%. Steve Katz Seconded.
Discussion: Steve Katz noted Dawne Holz did a great job in finding some CDs. We have almost $300K in reserves between savings and CDs that we can fall back on, if needed.
Vote: Yea=6, Nay=0, Absent 1

b. Request for addition of Stop Signs

Motion by Dawne Holz to approve $800 from Road Reserves to put in 3 stop signs at Herbert Quick and Mountainside Road per Craig's Creations proposal. Dave Creason Seconded.
Discussion: none
Vote: Yea=6, Nay=0, Absent 1

c. Task Force & Committee Volunteers
   i. Community Notice for four volunteers to join the By-Laws Task Force. Big email group. Valerie Creason will send an email with Charter attached.
   ii. Community Notice for two volunteers to join Nominating Committee. Big email group. Steve Katz will send an email with Charter attached.

Old Business

a. Update DACC Charter

Motion by Iris Melton to approve the updated DACC Charter. Steve Katz seconded as long as we add the wording that the Board can remove a member "for cause" under the "removal of members" section.
Discussion: none
Vote: Yea=6, Nay=0, Absent 1

b. CMA Policy Resolutions
   i. Noise Policy – Draft created – Pending Board review and edits
   ii. Short Term Rental Policy Resolution – Iris Melton provided update and will send to Lawyer with Steve Katz on Copy
   iii. Schedule of Fines, Fees, and Charges policy resolutions – Iris Melton provided update and will send to Lawyer with Steve Katz on Copy
   iv. Enforcement – Iris Melton provided update and will send to Lawyer with Steve Katz on Copy
c. Project List

Owners Forum

- Cindy Kelleher and Gary Farmer suggested sending a communication to the community regarding the new 3-way stop. Stephanie Rebant will assist with the communication.
- Stephanie Rebant is going to follow up with Craig Dean, Craig's Creations to see about a 15-mph sign to the right at the fork off of Herbert Quick.
- Dawne Holz noted the Board previously approved up to $800 so he might be able to fit that sign in.

Executive Session (held prior to open session)

a. 2021 Corporate Transparency Act – Dept. of the Treasury's Financial Crimes Enforcement Network (FinCEN)
b. Delinquency Report
c. Violations/Legal

Adjournment

At 8:54pm, Valerie Creason motioned to adjourn; Steve Katz seconded. Vote: Yea=6, Nay=0, Absent=1

Next Meeting – January 18th, 2024, 10:00am

Coolfont Mountainside Association
Board of Directors Meeting
January 18, 2025, 10:00am
MEETING MINUTES

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	A
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Iris Melton	P
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cindy Kelleher, Gary Farmer, Rosemary Bigelow, Stephanie Rebant, Joe Auslander, Barbara Meeker, Tom Holz, Travis Martz, Cathy Levey

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 10:10am. Valerie Creason acknowledged proof of quorum of board members.

Election of Officers

Motion: Dawne Holz moved to nominate Steve Katz as President, Dawne Holz as Treasurer, Valerie Creason as Secretary, and Norm Rosenberg as Vice president (pending acceptance). Steve Katz seconded the Motion.
Discussion: Treasurer Dawne Holz accepted but with the caveat that she must have support and someone to train to take her place (last year in her last term on the Board). She requested that the Bylaws Committee change the Treasurer wording and not require the Treasurer to be a Board Member. Secretary Valerie Creason accepted the position but only if we hire someone to help with meeting minutes and Iris Melton agreed to assist with non-official tasks.
Vote: Yea=5, Nay=0, Absent=2

Approval of Minutes

December 16, 2024 – Will be reviewed and approved in the next Board meeting.

Reports of Officers and Directors

a. President's Report
   - Steve Katz asked that all owners remain courteous to our CMA staff and support contractors because of recent unpleasant incidents between members and staff.
   - Welcome Iris Melton. Today is her first Board Meeting in her first term on the CMA Board.

b. Vice President's Report - none

c. Treasurer's Report
   - ***Refer to full Treasurer's Report on the CMA website***
   - CD's, Reserve Study, and Insurance were discussed
   - Iris Melton volunteered to review our coverage specific to fidelity insurance (up to $500K)

d. Directors' Reports
   - Cars parked on CMA roads. Directors agreed on a protocol to inform DACC and site manager. Steve Katz will provide a copy of an old parking "ticket" to Gary Farmer (DACC Chair) for DACC and Neighborhood Watch volunteers for placement on illegally parked vehicles.
   - Valerie Creason will load Violation Log on Google docs for use by Neighborhood Watch and Site Manager.
   - Stephanie suggested winter weather procedures for guests be posted on CMA website. BOD will review.

Site Manager Report, Stephanie Rebant, MHRE

- ***Refer to Site Manager Report on website for further details.***

Committee Reports & Chairs

a. Communications — Dawne Holz — Previously distributed
   Visitor Information page for website – include the following
   - Wording that states the fire screen should be covering the receptacle when burning is needed.
   - Refer to noise - (loud parties) - should also refer to a prohibition for loud music on the website.

b. DACC — Gary Farmer — Previously distributed

c. Firewise — Mark Johnson — Reminder Provided

d. Neighborhood Watch — Gary Farmer — Acknowledged No Update

e. Recreation — Chris Peabody — Previously distributed

f. Social — Vacant — No Update Provided

g. Welcome — Rosemary Bigelow — Previously distributed
   i. Draft Welcome Letter – Good to go with edits suggested during the meeting.

Task Force Reports & Chairs

a. Barn — Dave Creason — Acknowledged No Update

b. Sports Courts — Chris Peabody — Waiting on Funding

New Business

a. Appointment of Committee Chairs and Liaisons for 2025
   Discussed, request for volunteers for open positions will need to be sent by Secretary

b. Appointment of Task Force Chairs and Liaisons for 2025
   Discussed, request for volunteers for open positions will need to be sent by Secretary

c. Monthly Board Meetings Schedule for 2025
   Discussed and will be available on website

d. FirstEnergy remains delayed in the removal of an unused wire in H Section – Follow Up Needed
   - Iris Melton will get information from Cathy Levey as to who has been notified and the notification dates and attempt to contact First Energy to get this resolved.

e. Estimate to Paint Lines at new 3-way Stop Signs – Stephanie will look into this

f. Task Force & Committee Volunteers
   i. Community Notice for four volunteers to join the By-Laws Task Force is needed
   ii. Community Notice for two volunteers to join Nominating Committee is needed

g. New Owner Contact Form – Update discussed
   - Options may include: Full-time resident, Part-time resident, Long-term Rental (6 mo.+), Part-time resident with part-time rental.

h. Resale Violation

<u>Motion:</u> Dawne Holz moved to bill the homeowner (as discussed in Executive Session) of the cost of the resale package and an administrative fee of $100 for failing to purchase and provide a resale package per the policy. Iris Melton seconded the Motion.
<u>Discussion:</u> Dawne Holz will compose/send letter to local realtors notifying them of the requirement of resale package.
<u>Vote:</u> Yea=5, Nay=0, Absent=2

Old Business

a. CMA Policy Resolutions
   i. Noise Policy – Draft created – Pending Board review and edits
   ii. Short Term Rental Policy – legal review
   iii. Schedule of Fines, Fees, and Charges – legal review
   iv. Enforcement – legal review

b. Project List

Owners Forum

- Q: Need for Forest Management plan was discussed. Steve Katz volunteered to email Mark Johnson (Firewise) and Norm Rosenberg to ask them to research the possibilities.
- Q: Community Clean-up – consider providing an Apple Valley Waste dumpster for the homeowners for a few days for Homeowner Spring Cleaning. Cost, placement of dumpster, and signage/information of what items were acceptable/not acceptable was discussed.

Executive Session (held prior to open session)

a. Delinquency Report
b. Violations/Legal

Adjournment

At 12:30pm -- Dawne Holz motion to adjourn. Iris Melton seconded. Vote: Yea=5, Nay=0, Absent=2

Coolfont Mountainside Association
Board of Directors Meeting – February 15, 2025
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 12/31/24 are attached and cover 100% of the 2024 budget year. Expenses are at 101.7% – slightly over budget. This preliminary end of year report shows a surplus of $9,210.96, primarily due to the discontinuance of funding to CMAWS in July 2024. We anticipate this final number will change before closing out 2024. Any remaining funds are applied to equity.

For 2025, reports are as of 1/31/25 and cover 8.3% of the year. Expenses at 7.4% and 89.1% of income collected.

Meetings

There were no Finance Committee meetings since the last board meeting.

Delinquent Accounts

There are three unpaid 2025 assessment accounts. Late fees applied and statements mailed and emailed.

Updates

Updates include details of attached reports as of the end of the previous month.

December/January

- Set up new 2025 budget in QuickBooks. Still working to close out 2024.
    - BTM will complete transfer from CMAWS for final payroll
    - BTM will reallocate other payroll items to CPO and Pool Attendants, as appropriate.
    - Waiting on any final 2024 invoices.
    - Set up memorized QB transfers for CMA and CMAWS for reserve funds, respectively.
- Finance Charge rate (interest rate) updated to 10.5% for 2025 (Prime 7.5% + 3%)
- Mileage rate increased from 67 cents/mile to 70 cents/mile (CMA uses IRS business mileage rate). Updated Neighborhood Watch mileage spreadsheet with new rate for 2025, though no reimbursements have been requested since April 2024.
- Invoices for 2025 Annual Assessments were sent out on 1/1/25. About 25% of owners have paid to date. Reminders will go out on/about 1/15/25 and again just before deadline of 1/31/25. Late fees will be applied after Feb 1.

January

- 2024 Report: Still two corrections to make:
    - 750 Misc Operation belongs under 443 Pool Attendants
    - 66000 Payroll Expenses to be reimbursed from WS
- 550 Storm Water maintenance expense will be moved to Reserves
- 66000 Payroll shows a credit, as the 2024 WS transfer was posted on 1/8/25
- 762 Payment Processing fees are paid mostly in January as assessments are paid

MOUNTAIN HOME REAL ESTATE, LLC
64 South Green Street
Berkeley Springs, WV 25411
Phone: (304) 258-0410

MONTHLY STATUS REPORT FOR December 2024
As of: 02/11/25

Questions / Discussion Points / Approval from CMA Board:

(1) Daily rate for Keefer's Legacy Tree Service to drop any dead trees (this does not include enormous trees or trees that are very close to structures that need additional rigging and personnel to prevent property damage). The rate of $1,200 per day plus tax is for dropping trees in the open areas that are a hazard to the roadways. The estimate to drop trees plus chip up the brush is $1,500 plus tax.

(2) Reminder - the engineering study company that is going to assess the roads needs to look at a better long term solution for Q-3 - R-3 hillside and ditch area that leads to a riprap (narrow ditch) that has to manually be maintained and cleaned because excavation equipment would cause severe erosion issues and would collapse the hillside into the ditch and road.

(3) Consider budgeting $9,000 for tree removal before repaving tennis courts and moving playground equipment to the game court area when funds become available for the tennis court project.

Pending Tasks:

- Drafting a short and long term road maintenance plan (working with experienced excavators and water and sewer chair for priorities) for CMA to implement on an annual basis.
- Culvert list and storm water ditch list is being put into 2 community maps so an annual, 3 year and 5 year plan can be put in place marked with priority areas.
- Ditch cleaning needs to be conducted twice a year.
- The site manager has been allocated $20,000 in reserve funding and at the January 2025 meeting it was agreed that the remainder of funding can be used to clean ditches and repair culverts and the site manager will report monthly progress to the board. Priority issues to start with: clear culvert and improve ditch area near O-6, clean ditch in front of H-4 and Woodpecker Lane, clean the crushed culvert at the entrance of Woodpecker Drive, clear the clogged culvert at A-5, clear Bluebird Lane culvert
- Gravel will be needed in the spring after the snow plow season.

Tasks Completed:

- Normal site manager duties - upkeep of grounds, emergency tree removal response, upkeep and maintenance of facilities, snow removal
- Snow removal conducted for 01/10 and 01/17 winter storms followed by extreme cold temperatures.

Tennis Courts Planning Consideration:

If repaving is being considered for gamecourts, trees that are causing roots to pop up the existing pavement should be removed, this will also reduce debris on the gamecourts and reduce safety hazards. An estimate was provided by Keefer's Legacy Tree Service to remove 65 trees from the mailbox side of tennis courts to Mountainside Road towards Buckwheat Court, trim up 3 large pine trees and remove a row of sticker bushes: $8,000 - $8,500 plus tax ($9,010). Chip and remove all debris, leaf blow everything. Needs to be done before April 2025.

Playground equipment should be moved from the current site - it is located in a low, marshy area and relocated to the tennis courts. There is not enough space near the handicap parking and picnic table to move the playground equipment there.

Road Maintenance Plan Overview:
Phase 1: Ditch cleaning
Phase 2: List Priority culverts to be cleaned
Phase 3: Update community map with ditches and cultverts. Color coded system - red (address NOW), yellow (address next year), green (nothing needed at this time)
Phase 4: Gravel Road Plan
Phase 5: Blacktop Road Plan

Road Maintenance Summary:
At the November 2024 BOD meeting, the site manager received approval for $1,360 / day + tax for up to 4 days = $5,440 + tax for ditch clearing so culverts can be assessed and prioritized. Ditch cleaning, re-establishing sediment filled ditches and digging out culvert entrance was done from Herbert Quick Drive to Mountainside Road from O-5 to A-6.

12/13/24 - Tucker dug, widened and cleaned out ditches along Mountainside Road from O-6 to Daffodil Terrace. Ditches were in nearly nonfunctioning condition, filled with debris and sediment. Additional work is still needed in the lowest spot of the culvert and ditch area in front of O-5.

12/17/24 - GHS cleaned and widened ditches from along Mountainside Road from Daffodil Terrace to the entrance of Woodpecker Drive. Also cleared the saplings from the ditch areas from pump house at 128 Salmon Lane to the 15 mph speed limit sign (Keefer's Legacy Tree Service earlier in 2024 cleared the trees from the entrance of Salmon to the pump house).

Ditch priority cleaning as of 12/17/24 for GHS Excavating
Mountainside Road
Bobcat Drive Upper side
Salmon Lane - both sides
Whipporwill (upper side at entrance) and Woodpecker Lane (upper side)
Warbler's Way - inside ditches next to K-10 and K-17
Wintergreen - upperside
Dogwood Lane - mainly upper side & Cardinal Lane - towards turnaround

12/19/24 - Brian Yost cleared Bluebird Lane and Salmon Lane ditches (there are some deep ditches along Salmon that will need the trencher that Brian's machine cannot access)

12/31/24 - Brian Yost - cleaned ditches on Wintergreen, end of Bobcat and Woodpecker

12/31/24 - GHS Excavation - Bobcat Drive ditch cleaning, hauled leaves from riprap at Q-3 - R-3, leaf blowing the upper portion of Bobcat Drive (3) people. From Q-3 to R-3 is a hillside that equipment should never dig out the ditches, the ditches need to be hand shoveled and leaf blown because of erosion issues (riprap) when the road was constructed the original developer elected for the cheapest possible drainage system which was a riprap. The engineering study company needs to look at a better long term solution for this section to establish the ditch and prevent erosion issues.

Future assistance GHS Excavation that Brian cannot get to:
Deep ditches Salmon Lane
Ditch on Woodpecker Drive
H-4 - ditch is too deep for Brian's equipment
A-5 - culvert needs cleared at both ends
Bluebird Lane entrance - culvert is too small, needs replaced and until replaced it should be a priority to clean it

Other issues:
Crushed culvert needs raised at Woodpecker, Tucker bent the opening so it will function
Whipporwill Way area needs leaf cleaning

General Overview:

- Road improvement plan was slowed by severe January weather and snow covered ditches and culverts, will resume when the weather permits
- Limb and road debris maintenance during windy conditions
- Provide oversight for snow removal procedures and monitor road conditions
- Continued communication with neighborhood watch to notify and assist owners resolve any property issues or any trash violations
- Work with firewise chair to improve fire prevention procedures for CMA

COOLFONT MOUNTAINSIDE ASSOCIATION

COMMUNICATIONS COMMITTEE REPORT

BOARD OF DIRECTORS REPORT – FEBRUARY 18, 2025

Submitted by Dawne Holz *Information as of February 9, 2025*

SOCIAL MEDIA

Facebook: 95 members. Dawne Holz, Gina Baum, are admins.

Google Group: 205 subscribers. Admins are Dawne Holz (F-1); Clare Miller (A-3); and Barbara Shulman (T-8).

Clare and Barbara will review the GG User Policy from 2020 and suggest any updates.

WEBSITE

Admins: Dawne Holz, Erfan Zayer, Heidi Splane

Working on Information for Visitors – a short blurb with tips for members' guests. Board reviewed content in January and more discussion for February.

Working on Winter Tips pages for owners/guests.

Working on a better solution for securing owner documents. Determined that members' information is not accessible without password.

Per Board Request, removed all Board Meeting minutes and financial reports from the website.

TRAFFIC ANALYTICS

As of 2/10/25, for past 30 days.

Sessions	Pageviews	Avg. Session Duration	Bounce Rate
482 ↑ 29% vs. Previous 30 Days	1,441 ↑ 53% vs. Previous 30 Days	1m 18s ↑ 34% vs. Previous 30 Days	46.7% ↑ 4% vs. Previous 30 Days



Top Posts/Pages	
1. Coolfont Mountainside Association	317
2. Member Directory (secure) – Coolfont Mountainside Association	79
3. Owners – Coolfont Mountainside Association	49
4. Documents (secure) – Coolfont Mountainside Association	41
5. Community – Coolfont Mountainside Association	40
6. Amenities – Coolfont Mountainside Association	38
7. Association Documents – Coolfont Mountainside Association	30
8. Water & Sewer – Coolfont Mountainside Association	30
9. About – Coolfont Mountainside Association	28
10. Visitor Information – Coolfont Mountainside Association	25

CONTENT

- Posted January meeting reports.
- Added all 2025 Board Meetings to Calendar – updated all to Zoom meetings
- Posted all 2025 Board meeting dates info.
- Posted January board meeting notice.
- Updated post on status of Tariff review.
- Membership Directory updates: Sales: P-1, M-3. Deed Updates: H-2, H-3
- Updated Community Map and Trail Guide, Posted new PDF. Posted new PDF and png of map image.

SOFTWARE UPDATES

- Plugins all on Auto Update.

SECURITY

- Working on update for security of documents/pages. May need to move to user accounts for owners.
- Per Board Request, removed all Board Meeting minutes and financial reports from the website.